DIVISION BENCH ITEM NO. 103

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No. 16/ALD/2022 IN CA (CAA) No. 11/ALD/2022

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING ON 15th DECEMBER, 2022, 10:30 AM

NAME OF THE COMPANY	**RTS FASHIONS PRIVATE LIMITED & ANR WITH RED TAPE LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT 2013**

COUNSEL APPEARED THROUGH VIDEO CONFERENCING:

Sh. Rajeev K Goel, Adv. along with Sh. Ankit Kumar Singh, PCS. : *For the Petitioner*
Sh. Rajneesh Kumar Singh, AOL : *For the O.L. Alld./ RD (NR)*
Sh. Gaurav Mahajan, Sr. Standing Counsel : *For the I.T. Deptt.*
Sh. Krishna Dev Vyas, Adv. : *For the ROC, Kanpur*

ORDER

Sh. Rajeev Kumar Goel, Advocate along with Sh. Ankit Kumar Singh, PCS for the petitioners, Sh. Gaurav Mahajan, Sr. Standing Counsel representing the Income Tax Department, Sh. Krishna Dev Vyas, Advocate for ROC, Kanpur and Sh. Rajneesh Kumar Singh, AOL representing the Official Liquidator, Allahabad/ RD (NR) present.

At the outset, Ld. Sr. Standing Counsel representing the Income Tax Department states that he may be granted a week time to file the final affidavit on behalf of Income Tax Authorities with regard to the outstanding amount, if any, or refunds after setting of any advance taxes paid with respect to the *Mirza International Ltd.* (PAN-AAECM3626M) (Transferee Company) Let the needful be done within a period of one week. Soft copy as well as hard copy may be filed by the Ld. Counsel representing the Income Tax Department with the Registry of this Tribunal, with an advance copy to the Ld. Counsel representing the petitioner.

-Sd- ***-Sd-***

The reports with respect to the RoC, Official Liquidator/ RD (NR) have been filed, to which the Ld. Counsel representing the petitioner has already submitted the response affidavit.

The Registry of this Tribunal has also reported that a communication has been received on 5th December, 2022 from the Income Tax Department, Ward No.5(3)(1) Gautam Budh Nagar, Noida with respect to the company namely *Red Tape Ltd.* (PAN-AALCR5032R) (Resulting Company), the same is also taken on record.

Let the matter to come up for further consideration on 13th January, 2023.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

15th December, 2022

Kavya Prakash Srivastava
(Stenographer)